9:00 8	25CV477954	SIU Holdings, et.al. vs. Pouya Taaghol	Defendants move this court for Plaintiffs to comply with statutory undertaking requirement of CCP section 1030. Plaintiffs admit that they are out of state entities. The court is not persuaded that the business contacts they have made render them to be entities that are within the state. Defendant also need only show that they have a reasonable possibility of prevailing at trial. Defendant has met its burden showing that a factfinder could find that defendant's statements are protected by the common interest privilege or that the statement is not an accusation of a crime. Defendant's motion is GRANTED. This court will seek oral argument regarding the amount of bond appropriate in this matter.

Calendar Line 5

Case Name: *Mafi v. Jozani*

Case No.: 25CV466156

According to the allegations of the first amended complaint ("FAC"), Plaintiff Parastou Mafi ("Plaintiff") is married to but legally separated from Vahid Assadi ("Assadi"). (See FAC, ¶ 1.) Defendant Lynn Diane Assadi Jozani ("Defendant") is Assadi's sister and thus, Plaintiff's sister-in-law. (*Id.*) During the marital dissolution proceeding, Assadi made certain false representations to Plaintiff and the court, thereby breaching his fiduciary duties owed to Plaintiff. (See FAC, ¶¶ 9-15.) Defendant knowingly aided and abetted Assadi in the breach of his fiduciary duties and benefitted from these breaches. (See FAC, ¶ 16.)

On January 5, 2026, Plaintiff filed the FAC against Defendant asserting causes of action for:

1) Aiding and abetting breach of fiduciary duty;
2) Aiding and abetting fraud—intentional misrepresentations—Dougherty Property;
3) Aiding and abetting fraud—intentional misrepresentations—Stevens Creek Property;
4) Aiding and abetting fraud—concealment of material facts—Dougherty Property;
5) Aiding and abetting fraud—concealment of material facts—Stevens Creek Property;

6) Aiding and abetting fraud—false promise—Dougherty Property;
7) Aiding and abetting fraud—false promise—Stevens Creek Property;
8) Interference with prospective economic advantage—Dougherty Property;
9) Interference with prospective economic advantage—Stevens Creek Property;
10) Violations of Uniform Voidable Transactions Act—Dougherty Property; and,
11) Violations of Uniform Voidable Transactions Act—Stevens Creek Property.

Defendant's request for judicial notice of the May 18, 2023 order regarding the sale of real properties and distribution of net proceeds, the June 20, 2023 order appointing real estate agent, the July 5, 2023 order appointing real estate agent Brian Costello, and the October 11, 2023 stipulation and order is GRANTED. (Evid. Code § 452, subds. (c), (d), (h); see also *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914 (stating that "[a] court…can only take judicial notice of the truth of facts asserted in documents such as orders").) Defendant's request for judicial notice of the Ruby Naranjo declaration is GRANTED as to its existence. (See Evid. Code § 452, subd. (d).) Defendant's request for judicial notice of the August 24, 2023 email from Judge Edward Mills to Christopher Hirz and Thomas Bloom regarding the Stevens Creek listing is DENIED as it is not a proper subject of judicial notice.

First cause of action for aiding and abetting breach of fiduciary duty

As Defendant argues, the alleged nondisclosures or misrepresentations during a judicial proceeding, or statements made in court documents filed in a proceeding are protected by the litigation privilege. (See *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065 (stating that "if the gravamen of the action is communicative, the litigation privilege extends to noncommunicative acts that are necessarily related to the communicative conduct").) Further, a cause of action for breach of fiduciary duty based on fraud is generally required to be pled with particularity. (See *Knox v. Dean* (2012) 205 Cal.App.4th 417, 434 (stating that "[a] breach of a fiduciary duty usually constitutes constructive fraud… [and] like actual fraud, must be pleaded with specificity").) Moreover, Defendant is correct that Plaintiff may not attempt to relitigate matters concerning Assadi in a separate action. Here, to the extent that the first cause of action is based on conduct that is neither protected by the litigation privilege, nor the subject of an order in the family law case, it fails to allege facts with sufficient specificity regarding the Defendant's conduct constituting the substantial assistance or encouragement and how such conduct was a substantial factor in causing harm. (See *Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 343 (stating that "[t]he elements of a claim for aiding and abetting a breach of fiduciary duty are: (1) a third party's breach of fiduciary duties owed to plaintiff; (2) defendant's actual knowledge of that breach of fiduciary duties; (3) substantial assistance or encouragement by defendant to the third party's breach; and (4) defendant's conduct was a substantial factor in causing harm to plaintiff").) Defendant's demurrer to the first cause of action for aiding and abetting breach of fiduciary duty is SUSTAINED with 10 days leave to amend.

Second through seventh causes of action

The second through seventh causes of action allege fraud by intentional misrepresentations, concealment and promise without intention to perform. As indicated above, fraud must be pled with particularity. (See *Wald v. TruSpeed Motorcars, LLC* (2010) 184 Cal.App.4th 378, 393 (stating that "[i]n California, fraud must be pled specifically; general and conclusory allegations do not suffice… plaintiff must plead facts which show how, when, where, to whom, and by what means the representations were made"); see also *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793 (stating same).) As stated above, these causes of action may not be based on alleged representations made "in various court documents filed in the marital dissolution proceeding" as those representations are protected by the litigation privilege. As to other statements or omissions not protected by the litigation privilege, the causes of action fail to allege the fraud or Defendant's substantial assistance with sufficient particularity. Defendant's demurrer to the second through seventh causes of action is SUSTAINED with 10 days leave to amend.

Eighth and ninth causes of action for interference with prospective economic advantage

Here, both the eighth and ninth causes of action are based on Defendant's "engaging in her wrongful acts of aiding and abetting Assadi in his breaches of fiduciary duties to Plaintiff and his fraudulent conduct perpetrated against Plaintiff." (FAC, ¶¶ 66-68, 73-75.) As the FAC fails to adequately allege causes of action for aiding and abetting breach of fiduciary duty and fraud, these dependent causes of action likewise fail to state facts sufficient to constitute a cause of action. Defendant's demurrer to the eighth and ninth causes of action is SUSTAINED with 10 days leave to amend.

Tenth and eleventh causes of action for violations of the Uniform Voidable Transactions Act

Defendant demurs to the tenth and eleventh causes of action for violation of the Uniform Voidable Transactions Act, arguing that judicially noticeable facts demonstrate that Defendant was a good faith transferee. Plaintiff argues that the Court should not take judicial notice of the facts contained within the orders. However, as stated above, the Court may "take judicial notice of the truth of facts asserted in documents such as orders." (*Day*, *supra*, 50 Cal.App.3d at p.914.) The orders indicate that the parties anticipated the amount of $1,515,000 for the sale of the Dougherty property and $1,200,000 for the Stevens Creek property. (See Def.'s request for judicial notice, exhs. C ("Narajo decl."), ¶ 3; D ("October 11, 2023 order, ¶¶ 4-5 (stating the amount anticipated for Stevens Creek property is that which was received from the seller).) Judicially noticeable facts indicate that Defendant was not a good faith transferee and the tenth and eleventh causes of action fail to state facts supporting violations of the UVTA. Defendant's demurrer to the tenth and eleventh causes of action is SUSTAINED with 10 days leave to amend.

Defendant shall prepare and submit a proposed final order consistent with this tentative ruling.